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POLITICS OF EUROPEAN INTEGRATION: CLASSROOM EXERCISE

Mock Trial at the Court of Justice

A 55-minute Court of Justice simulation on free movement of goods, with a national ban on trial and a staged protest at the courthouse door.

Topic tags: Court of Justice of the EU · free movement of goods · Articles 34 and 36 TFEU · Cassis de Dijon · precautionary principle · judicial politics

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Abstract

This exercise stages a fictional infringement case before a simulated Court of Justice of the European Union. In the case, *Republic of France v European Commission*, France has banned a (fictional) pesticide, “Pollinator X”, made only in Germany, and defends the ban on environmental grounds; the Commission says the ban breaks the free movement of goods, and Germany intervenes to defend its product and threaten retaliation. Students form six teams (Advocate General, Commission, France, Germany, a civil society organisation, and the Bench of judges), each working from a shared case file and a role brief built around the same set of Treaty articles and case law. The Court hears an opening opinion from the Advocate General, then oral argument from each party, poses questions, hears closing rebuttals, and deliberates to a verdict on two questions: is the ban a measure having equivalent effect to a quantitative restriction under Article 34 TFEU, and if so is it justified under Article 36? A staged protest is injected outside the courtroom partway through, adding a deliberate dose of judicial politics: students see whether public pressure moves, or should move, a court. The exercise teaches the legal architecture of free movement while exposing the political forces that surround judicial decision-making.

Learning outcomes

By the end of this exercise students will be able to:

- Explain how Articles 34 and 36 TFEU, the Dassonville formula, the Cassis de Dijon principle of mutual recognition, and the precautionary principle structure a free-movement-of-goods dispute.
- Construct and deliver a reasoned legal argument for an assigned party, and anticipate and rebut the arguments of opposing parties.
- Apply the proportionality test to a national measure, weighing environmental protection against the free movement of goods on the available evidence.
- Analyse the interplay of legal and political factors in the Court’s work, including the role of the Advocate General, the pressure of public opinion, and the precedent-setting effect of a ruling on integration and national sovereignty.

At a glance

Duration	55 minutes for the trial, plus 15–20 minutes debrief
Class size	24–40 students, working in six teams
Room setup	One room, moveable seating arranged as a courtroom: a bench for the judges facing tables for each party, each table labelled; projector for the intro slides; space at the door for a staged protest
Materials needed	Printed case file and role briefs (one set per team, plus a consolidated copy for the instructor); table labels; highlighters on each table; a projector for the intro slides; a small speaker or phone for sound effects (protest noise, optional anthem on the judges' entrance); optionally a gavel; a whiteboard for the speaking order and timings
Instructor prep time	45–60 minutes (allocate teams, print and email briefs, prepare labels and the sound cue)
Student prep time	20–30 minutes reading the case file and their role brief in advance

Pre-class preparation

For the instructor

- Divide the class into six teams: the Advocate General (3–4), the Bench of judges (about 7), the Commission (6–8), France (6–8), Germany (6–8), and the civil society organisation (3 or more). See the role-allocation guide in Appendix A for how to scale these to your class.
- Email the case file (Appendix B) and every team its role brief at least a day before class. Print one set per team, plus a consolidated copy you can follow, and a few spares for the students who circulate to assist. Legal text is easier to annotate on paper, so printing matters here.
- Ask each team to nominate a lead speaker in advance, and tell teams that non-speakers are expected to take notes for rebuttals (and, for the judges, to draft questions).
- Assign two procedural roles from within the Bench or your organising team: a **President** who opens the trial and chairs, and a **Registrar** who calls each party to speak and keeps the trial moving. A dedicated Registrar keeps the flow tight; without one, the President doubles up.
- Prepare the protest cue. Decide who will stage a brief protest outside the door during the civil society team's turn (a few students from that team, or confederates you brief quietly), and have a short burst of protest noise ready on the speaker. Optionally cue the EU anthem, "Ode to Joy" (public domain), as the judges enter, for atmosphere.
- Set out the room as a courtroom before class: bench facing the party tables, labels in place, highlighters out.

For students

- Read the case file and your role brief beforehand. Come ready to argue your assigned position, setting aside your own views on pesticides, trade, or the environment.
- Identify your strongest one or two arguments, the case law that supports them, and the counterarguments the other side will make. The parties share the same law; the contest is in how you deploy it.
- The civil society team should note that Pollinator X is fictional, so they have licence to research real pesticide debates and build an emotive, evidence-flavoured case; their perspective is political, not legal.

Session plan

The trial runs to 55 minutes. Keep it moving briskly; the point is the argument and the deliberation, not exhaustive coverage. Debrief follows separately (see below).

Time	Phase	What happens
0:00–0:05	Introduction	Using the intro slides, set out the role of the Court, the case being heard, the parties, and the procedure and timings. Stress that the Court is balancing integration against national interests.
0:05–0:20	Team preparation	Each team reads its brief, settles its argument, and confirms its speaker. Non-speakers prepare notes and questions. Circulate to answer questions and read the room.
0:20–0:22	Court convenes	All rise as the judges enter (optional anthem). The President declares the trial open and the Registrar calls the first party.
0:22–0:32	Round 1: oral argument	Each party has 2 minutes, in order: Advocate General (sets out the facts and the law), then Commission, France, Germany, and the civil society organisation. During or just after the civil society turn, the staged protest erupts outside the door (sound cue).
0:32–0:35	Judges' questions	The Bench puts questions to any party on their arguments or the facts.
0:35–0:38	Break	Short recess for each team to prepare closing points and respond to what they heard.
0:38–0:44	Round 2: closing statements	Each party gives a 2-minute closing that rebuts opponents and answers the judges' questions, in order: Commission, then France, then Germany. (Add the Advocate General and civil society here if time allows.)
0:44–0:55	Deliberation and verdict	All rise as the judges withdraw to deliberate (one student may reset the room meanwhile). The Bench

Time	Phase	What happens
		returns, and the nominated judge who reads the judgment delivers the verdict on the two questions, with brief reasons.

The two questions the Bench must answer

1. Does France's ban on Pollinator X constitute a quantitative restriction or a measure having equivalent effect under Article 34 TFEU?
2. If so, is the ban justified under Article 36 TFEU (or as a mandatory requirement), and in particular is it proportionate on the evidence before the Court?

How the verdict is reached. The judges deliberate freely and decide by simple majority; the President has a casting vote if the Bench splits evenly. There is no formal weighting: this is a bench trial, and the judges are persuaded by the quality of argument and evidence, not by vote counts among the parties. Remind the Bench that the burden of proof sits on France to show the ban is necessary, proportionate, and non-discriminatory.

Debrief and reflection

Allow 15–20 minutes. This is where the exercise pays off, so protect the time. Open by asking the Bench to explain its reasoning, then work through the questions below.

On the law: surface how the free-movement framework actually applied.

- Was the ban a measure having equivalent effect under Article 34? What made it so, and did the fact that Pollinator X is made only in Germany matter?
- Which Article 36 ground (or mandatory requirement) did France rely on, and where did the argument stand or fall: on the aim, or on proportionality?
- What work did the precautionary principle do? Could France invoke it without a scientific risk assessment, and should that have been decisive?
- Which precedent did each side lean on hardest (Dassonville, Cassis de Dijon, Commission v Denmark, the "Reinheitsgebot" beer-purity case, Gourmet, the Italian trailers case), and which was most persuasive to the Bench?

On evidence and proportionality: surface the role of proof.

- France carried the burden of proof. How much did the absence of hard scientific evidence weigh against it? Was that fair?
- Could a less trade-restrictive measure (labelling, restricted use, a temporary suspension pending testing) have achieved France's aim? Did anyone propose one?
- Germany claimed discrimination and protectionism. Was the ban really aimed at protecting French producers, or was that a rhetorical move?

On judicial politics: surface the political dimension the exercise is built to expose.

- Did the protest affect anyone, judges included? Should a court be moved by public pressure, and can it ever fully ignore it?
- What did the civil society team add that the legal parties could not? Whose interests were unrepresented in the courtroom?
- The Advocate General’s opinion is not binding. Did it shape the Bench’s thinking? How does having an independent opinion change the Court’s process?
- A ruling here sets a precedent for every member state. How did the shadow of that precedent, and of Germany’s threatened retaliation, sit alongside the strictly legal question?

Stepping outside the roles: surface the bigger question.

- Where should the line fall between the single market and a member state’s right to protect its own environment? Did the exercise make that trade-off feel real?
- If you ran the trial again, what would you argue differently?

A note worth sharing in the debrief: in classroom runs the Bench has sometimes ruled *against* the environmental ban precisely because the defending state offered no scientific evidence, an outcome that can diverge from how a real court might decide a fuller case. That divergence is a teaching point about how much the evidence, not just the law, drives the result.

Assessment suggestions

The exercise works well ungraded. If assessment is wanted, keep it light:

- A short individual reflection (400–600 words) on two or three debrief questions, or on how their team’s argument held up.
- A participation mark for staying in role and engaging in argument.
- A brief written “judgment” from each member of the Bench (or a one-page skeleton argument from each party), setting out the reasoning. The rubric in Appendix A grades this consistently.

Adaptation notes

- **Scaling.** With fewer than 24 students, trim the larger delegations to 3–4 each and drop the civil society team into the France team as a supporting voice; keep the Bench at 3–5. With more than 40, add junior members to each delegation rather than enlarging beyond eight, or split the Bench so a second panel hears the same case and the two verdicts are compared.
- **Adding scientific evidence.** The original briefs deliberately omit hard data to keep them short. To sharpen the proportionality debate, add a one-page (fictional) evidence annex to the France and civil society briefs: a contested field study on pollinator decline, plus an EU-agency approval dossier for Germany to cite. This changes the balance and makes the burden of proof bite differently.
- **Introducing live rebuttal.** For a more adversarial feel, replace the closing statements in Round 2 with direct rebuttals, giving each party 90 seconds to respond to a named opponent. This needs a firm Registrar and slightly more time.
- **Online delivery.** Put each team in its own breakout room to prepare, then bring everyone into the main room for the hearing with cameras on. Stage the “protest” by having the civil society team flood the chat or unmute briefly on cue. Share the case file and briefs as files in advance.

- **Different topic.** The same courtroom structure fits any Court of Justice dispute with a defending member state, an enforcing Commission, an intervening state, and an affected public: for instance a services-restriction case, a citizenship case, or an environmental-standards case. Swap the case file and briefs; keep the roles and the running order.

Appendix A: Instructor materials

A1. Role-allocation guide

Team	Suggested size	What they do
Advocate General	3–4	Opens the hearing with a neutral, reasoned opinion on whether the ban is a measure having equivalent effect and whether Article 36 saves it. Impartial.
Bench of judges	about 7	Hears the argument, questions the parties, deliberates, and delivers the verdict. Provides the President and, ideally, the Registrar.
European Commission	6–8	Brings the infringement action; argues the ban restricts trade and fails the Article 36 / proportionality test.
Republic of France	6–8	Defends the ban on environmental and precautionary grounds; argues it is necessary, proportionate, and non-discriminatory.
Federal Republic of Germany	6–8	Intervenes to defend Pollinator X; argues the ban is discriminatory and protectionist; threatens retaliation.
Civil society organisation	3 or more	Brings a non-legal, political voice supporting the ban; stages the protest.

If your class does not divide evenly, add or remove members from the three large delegations (Commission, France, Germany) first; keep the Bench, Advocate General, and civil society team near their suggested sizes so the courtroom stays balanced.

A2. Facilitator script for the two procedural roles

President (on convening). “All rise. The Court of Justice is now in session in the case of the Republic of France against the European Commission. The Court will first hear the Advocate General, then the parties in turn. Each has two minutes. Registrar, call the first speaker.”

Registrar (between speakers). “The Court calls [party] to present.” Keep a visible timer; at 15 seconds remaining, signal the speaker; at time, thank them and call the next.

President (before deliberation). “The Court thanks the parties. We will now withdraw to deliberate. All rise.” On return: “The Court has reached its decision. The judgment will be read.” Nominate one judge to read the verdict on both questions with short reasons.

A3. Model outcome (for the instructor)

There is no single “correct” verdict; a well-argued Bench can go either way, and that is the point. Two coherent lines:

- **Ban fails (measure not justified).** The ban is a measure having equivalent effect: an outright prohibition on a lawfully marketed good clearly hinders trade (Dassonville; Cassis de Dijon mutual recognition). France invokes environmental protection under Article 36 and the precautionary principle, but under *Commission v Denmark* the principle requires a scientific risk assessment, and proportionality (as in *Gourmet*) demands the least trade-restrictive measure. With no evidence and no lesser alternative tried, the ban fails proportionality. This mirrors the “Reinheitsgebot” beer-purity reasoning, where an asserted health justification collapsed for want of a genuine risk.
- **Ban upheld (measure justified).** The ban is a measure having equivalent effect, but Article 36 and the mandatory requirement of environmental protection apply. The precautionary principle permits protective action ahead of full certainty about irreversible ecological harm; provided the measure applies without regard to origin and no equally effective lesser measure exists, it is proportionate. The *Italian trailers* case shows use-restrictions can be justified by a genuine public interest.

The verdict usually turns on how seriously the Bench treats the burden of proof and the absence of evidence: emphasise that in the debrief.

A4. Marking rubric (optional)

Use this to grade a written judgment (from judges) or a skeleton argument (from parties), or to score participation. Four criteria, 5 points each, 20 total.

Criterion	5 (excellent)	3 (competent)	1 (weak)
Command of the law	Accurately deploys Articles 34 and 36, Dassonville, Cassis de Dijon, and the precautionary principle; cites the right case for the point.	Uses the main provisions correctly but with gaps or loose citation.	Confuses or misstates the framework.
Argument and structure	Clear, well-ordered argument that reaches a reasoned conclusion; anticipates and answers the other side.	Argument is followable but one-sided or uneven.	Assertion without reasoning.
Proportionality and evidence	Engages seriously with the burden of proof and with less-restrictive alternatives.	Mentions proportionality but does not test it.	Ignores proportionality or the burden of proof.
Role and delivery	Stays fully in role; persuasive, responsive to questions and to the protest.	In role but flat or under-prepared.	Out of role or disengaged.

A5. Case-law reference sheet (for the instructor)

These are the public authorities the briefs summarise. Give students the summaries in the briefs; consult the sources yourself for accuracy.

- **Dassonville** (Case 8/74): any measure capable of hindering intra-EU trade, directly or indirectly, is a measure having equivalent effect.
- **Cassis de Dijon** (Case 120/78): mutual recognition, subject to “mandatory requirements” (which include environmental protection) applied without discrimination.
- **Sandoz** (Case 174/82): member states may restrict on health grounds where scientific uncertainty exists, but within the limits of proportionality; the Court reads Article 36 narrowly and demands strong evidence.
- **Commission v Denmark (“Danish bottles” / nitrates line of cases)**: the precautionary principle can justify restrictions but must rest on a scientific risk assessment and be proportionate.
- **Commission v Germany (“Reinheitsgebot”, Case 178/84)**: the German beer-purity rule was not justified on health grounds where the additives posed no established risk.
- **Gourmet** (Case C-405/98): a Swedish advertising ban; a valid health aim still fails if less trade-restrictive measures could achieve it.
- **Commission v Italy (“Italian trailers”, Case C-110/05)**: restrictions on the use of a product can be measures having equivalent effect, but may be justified by a mandatory requirement (there, road safety) if proportionate.

Full texts are on EUR-Lex (eur-lex.europa.eu) and the Court’s site (curia.europa.eu).

A6. Further reading

- Barnard, C. (2022) *The Substantive Law of the EU: The Four Freedoms*. 6th edn. Oxford University Press. Chapters on goods, Articles 34–36, and justification.
- Craig, P. and de Búrca, G. (2020) *EU Law: Text, Cases, and Materials*. 7th edn. Oxford University Press. Chapters on free movement of goods and on the Court.
- Alter, K. (2001) *Establishing the Supremacy of European Law*. Oxford University Press. On the Court's role in integration and the politics around it.

Appendix B: Student handouts and role briefs

The case file is shared by all teams; give it to everyone. Each role brief then follows. All parties work from the same law and case-law set; the difference is the position each must argue.

CASE FILE · SHARED BY ALL TEAMS

Case file: Republic of France v European Commission

Note: this is a fictional case, loosely inspired by the Court's free-movement case law. "Pollinator X", the parties' factual claims, and the outcome are invented for teaching.

The dispute. The Republic of France has passed a national law banning the use of "Pollinator X", a pesticide produced exclusively in the Federal Republic of Germany. France justifies the ban on environmental grounds, citing evidence of harm to pollinators and wider ecological damage. The European Commission considers the ban a breach of the free movement of goods and has opened infringement proceedings against France. Germany has intervened, defending the safety of its product, calling the ban disproportionate and discriminatory, and threatening to require testing of French products in retaliation, which would itself disrupt the single market.

The burden of proof. It lies with France to show that the ban is justified under Article 36 TFEU: that it is necessary, proportionate, and non-discriminatory. If the Court finds the ban unlawful, it can order France to lift it and may impose financial penalties.

What the case is about. The balance between environmental protection and free trade; the role of scientific evidence in policy; and the Court's role in resolving conflicts between the single market and national choices.

The two questions before the Court.

1. Does the ban constitute a quantitative restriction or a measure having equivalent effect under Article 34 TFEU?
2. If so, is it justified under Article 36 TFEU (or as a mandatory requirement), and is it proportionate?

The law.

- **Article 34 TFEU** prohibits quantitative restrictions on imports and all measures having equivalent effect (MEEQRs). A quantitative restriction caps the amount imported; a measure having equivalent effect is any rule or practice that hinders the free movement of goods, even without an explicit limit, including product requirements, packaging rules, and outright bans (*Dassonville*).
- **Article 36 TFEU** lets a member state derogate from Article 34 on certain grounds, including protecting the health and life of humans, animals, or plants. The measure must be proportionate: the least trade-restrictive means of achieving the aim. The Court reads these exceptions narrowly and demands strong evidence (*Sandoz*).

Key case law (summaries).

- **Cassis de Dijon** established mutual recognition: goods lawfully made and sold in one member state should be sellable in others, unless a "mandatory requirement" (such as environmental

protection), applied equally to domestic and imported goods, justifies a restriction. It guards against protectionism dressed up as consumer or environmental protection.

- **Commission v Denmark** concerns the precautionary principle: preventive measures may be taken even without full scientific certainty, but they must rest on a scientific risk assessment and be proportionate.
- **The “Reinheitsgebot” beer-purity case** struck down a German rule excluding beers with additives such as rice and maize; the additives posed no established health risk, so the health justification failed.
- **Gourmet** concerned a Swedish ban on alcohol advertising; protecting health is a valid aim, but the measure failed proportionality because less trade-restrictive means existed.
- **The Italian trailers case** clarified that restrictions on the *use* of a product can also be measures having equivalent effect if they hinder market access, but may be justified by a mandatory requirement (there, road safety) if proportionate.

Advocate General

Your role. You are the Advocate General of the Court of Justice. You give the Court an independent, impartial view of the legal landscape before the judges deliberate. You are not on any party's side. Explain how, in your view, the Treaty provisions and precedents apply here: whether France's ban is a measure having equivalent effect under Article 34, and whether it can be justified under Article 36 or as a mandatory requirement. Set out the proportionality test clearly, note where the evidence is thin, and offer a reasoned opinion for the Court to weigh. Your opinion is not binding, but a well-argued one shapes the deliberation.

What to do in the hearing. You speak first. In your 2 minutes, state the facts neutrally, identify the legal questions, walk briefly through the applicable law (Articles 34 and 36, Dassonville, Cassis de Dijon, the precautionary principle from *Commission v Denmark*), and give your reasoned view on how they apply. Flag the burden of proof on France and the significance of any missing scientific evidence.

Anchor authorities. Dassonville and Cassis de Dijon (is it a measure having equivalent effect?); Sandoz and *Commission v Denmark* (can Article 36 and the precautionary principle save it?); the "Reinheitsgebot" beer-purity case (a health justification failing for lack of a genuine risk).

European Commission

Your position. You have brought this infringement action. You argue that France's ban restricts intra-EU trade and raises a barrier in the internal market. Your goal is to show the Court that the ban is a measure having equivalent effect under Article 34, and that it is not saved by Article 36 because it is disproportionate and not backed by adequate evidence. Frame the ban as damaging to the wider project of integration that France signed up to under the Treaties. Prepare rebuttals to France's precautionary argument and to Germany's, whose retaliation threat, if you wish, you can also criticise as a further threat to the single market.

Lines of argument.

- The ban is plainly a measure having equivalent effect: an outright prohibition on a lawfully marketed good (Dassonville; Cassis de Dijon mutual recognition).
- France's Article 36 defence fails proportionality. Under *Gourmet*, a valid aim is not enough if less trade-restrictive measures (labelling, restricted use, conditional approval) could achieve it. France has not tried them.
- The precautionary principle does not rescue an unevidenced ban: *Commission v Denmark* requires a scientific risk assessment. The "Reinheitsgebot" case shows an asserted justification collapsing without a real risk.

Remember. Prepare counterarguments; France will lean hard on irreversible ecological harm.

Republic of France

Your position. You defend the ban on Pollinator X. Argue that it is necessary to achieve legitimate environmental objectives and to protect public health, and that it is proportionate. Lean on the precautionary principle and on the risk of irreversible ecological damage, and tie your case to the EU's own wider commitment to environmental protection. You carry the burden of proof, so be ready to explain why the ban is necessary, proportionate, and non-discriminatory. Prepare rebuttals to the Commission and to Germany.

Lines of argument.

- Even if the ban is a measure having equivalent effect, it is justified under Article 36 (protection of health and life of animals and plants) and as a mandatory requirement of environmental protection under Cassis de Dijon, applied without regard to origin.
- The precautionary principle (Commission v Denmark) permits protective action ahead of full scientific certainty where the potential harm, here to pollinators and the wider ecosystem, is serious and possibly irreversible.
- The ban is not protectionist: it targets a substance, not a country, and would apply to any producer. France has no domestic Pollinator X industry to protect.

Watch your weak point. The other side will press you on evidence and on less-restrictive alternatives. Have your best answer ready on both.

Federal Republic of Germany

Your position. You have intervened to defend Pollinator X, made only in Germany. Argue that the product has been rigorously tested and approved by EU agencies, that the ban is disproportionate, discriminatory, and protectionist, and that it will raise the cost of food production. You may threaten retaliation: requiring your own testing of French imports, or halting imports of a French product, warning that this would itself disrupt the free market. Prepare rebuttals to France.

Lines of argument.

- The ban is a measure having equivalent effect that singles out a good made only in Germany; its effect, if not its wording, is discriminatory (Dassonville; Cassis de Dijon).
- France's justification is unproven. Under Sandoz and Commission v Denmark, an Article 36 or precautionary defence needs a scientific risk assessment; France offers none.
- Even a genuine aim must use the least trade-restrictive means (Gourmet). An outright ban is the most restrictive option available and so fails proportionality.
- Politically: warn the Court that upholding the ban invites a spiral of retaliatory testing that would fragment the single market.

Civil society organisation (European farmers' movement)

Who you are. You represent a Europe-wide movement of small and peasant farmers. You defend medium and small farms against pressure from large, industrialised agriculture, and you back a gradual shift to agroecology: sustainable farming that works with nature, more organic production, and scepticism towards artificial inputs and pesticides. As a civil society organisation you can stage protests to press your view on the Court.

Your position. You are broadly in favour of France's ban. Pollinator X, an artificial pollinator best used at scale, would benefit large farms at the expense of small ones, and any harmful chemicals in it could damage the natural pollinators (insects, birds) that small-scale farming depends on. Your job is to bring a non-legal, political voice to the courtroom, using scientific and anecdotal evidence to speak for your members' farms and livelihoods.

What to do in the hearing. Present your argument emotively and in the character of political activists. Because Pollinator X is fictional, you have room to research real pesticide and pollinator debates and adapt them. During or just after your turn, stage a brief protest outside the courtroom door (the instructor will cue the sound). The interesting question, which the debrief will return to, is whether the Court should, or does, take any notice.

Relevant law (for reference only; your focus is political, not legal). Article 34 TFEU (measures having equivalent effect), Article 36 TFEU (the environmental and health derogation), and Cassis de Dijon (mandatory requirements including environmental protection). You do not need to argue these, but knowing them helps you pitch your appeal to the Court.